MINUTES OF THE MEETING OF DECEMBER 3, 2002

Minutes of the meeting of Pine Valley Special Service District Board of Trustees held on December 3,2002 at the fIre station in Pine Valley, Utah. The meeting was called to order at 5:30 pm by Ron Snow, Chairman. Other board members present were Lee Carlile, Victor Christensen, Vicki Frei, and Ryon Gardner. Others present were Dall Winn, Fire Chief; Julie Cropper, Board Secretary; Fred Pendelton, Pine Valley Historical Advisory Committee; Steve Robinson, Washington County Planning and Zoning; and Washington County Undersheriff Pete Kuhlman. Members of the public present were Layne Frei, Beverly Udell, George Cropper and Bob Herpel.

The Pledge of Allegiance to the Flag was conducted and minutes of the meeting of November 5, 2002 were read and approved on a motion by Vicki and seconded by Ryon.

Ron discussed the need for a motion each year to retain and continue employment of the Fire Chief. It was decided that this was a good idea and would be considered at the fIrst meeting in 2003 and subsequent years.

Ron mentioned that building plans had been signed for Tony Terry, apparently for the "flag lot" property and for Doug Hannig.

The Chairman then opened a formal public budget hearing for the District's 2003 budget. Julie suggested that the budget limit be raised to $45,000 from the $43,000 in the proposed budget. The Board discussed needs for meeting their grant matches and funds necessary for a possible Fire Chief budget. It was decided we should be able to meet these costs with the $45,000 budget ceiling, but that it doesn't have to be spent if it is not needed.

There was no input from the public. Vicki moved to raise the 2003 budget limit to $45,000 and approve the budget on that basis. The motion was seconded by Victor and carried.

After some discussion about the time of the Board meetings, and the need to accommodate members being present, Vicki moved and Ryon seconded a motion to change the standard meeting time to begin at 6:00 pm. The motion was approved.

Ron opened a discussion about the need for up to $600 for a Pine Valley Historical Advisory Committee mailing. Postage rates and the amount to be mailed were discussed and it was decided that Fred could work with Julie and try to incorporate

the Pine Valley Historical Advisory Committee material into the annual mailing in January or February.

Pete Kuhlman was introduced and conducted a discussion about OHV regulations with the main points as follows:

- there is confusion and inconsistency between County regulations, State Law and BLM/Forest Service maps about where it is legal to ride OHVs. An old County policy says unpaved roads are open, State Law says all areas are closed unless designated open and the maps cite the County policy. If challenged, this confusion makes prosecuting violators difficult.

- Commissioner Eardley seems to be willing to consider revising and publishing a County ordinance. The County has no roads designated open under State law.

- we need to work through the County to decide what is appropriate, get it into an ordinance, and then it can be signed to let people know what is appropriate and what is a violation. Maps also need to be corrected.

- there is a provision excepting agricultural use from State OHV regulations.

- out of state OHV s stored here technically need to be licensed in Utah, but it is hard to prove and enforce that.

- technically we could post signs and enforce the State regulation, recognizing there is confusion between regulations and the maps.

- for speed problems contact the sheriff. The Sheriff deputies will try within their means and priorities to follow up on calls and concentrate on weekends this coming summer.

- regulations can be adopted for Pine Valley separate from the rest of the County.

- most incorporated areas such as Ivins and Washington are closed.

The Board discussed these ideas and the need to get ideas and input from the affected public including a meeting to invite people to make their wishes known. Timing was considered and County approval would take at least 30 days. Fred mentioned that OHV issues could be one of the questions on the Pine Valley Historical Advisory Committee mailing.

Ron said we will proceed with a public meeting and a plan.

Fire Chief, Dall Winn reported on the following:

- we have received a Federal Grant for about $18,000 which requires a 10% match from the District. With this we will acquire 10 sets of turnout gear, 10 handheld radios, and 2 mobile radios.

- we need to spend the State Grant and will get a pump and hose for the new truck, wildflre protective gear, and some miscellaneous supplies. We need to come up with $2,250 for the pump now.

- training and Xmas social will be Sat. Dec. 7th at 11 :00 am. Fire Dept. will need up to $150 to provide lunch.

Lee moved and Victor seconded a motion to approve $2,250 to acquire the pump. The motion carried by voice vote.

Vicki moved and Ryon seconded a motion to approve up to $150 for the volunteer flremen lunch at the December training. The motion carried.

Fred Pendelton gave the following report on activities of the Pine Valley Historical Advisory Committee:

- they are continuing on a land use survey which is about 90% complete. This will be reviewed at the Thursday meeting.

- they are working on a community survey using aspects of a University of Utah sample.

- he reported on a response trom Dixie College President about the use of the College building. It is not a community building and not available for community activities, but limited to college sanctioned functions. Some restrictions on use are based on what Pine Valley people wanted when the building was constructed.

The board discussed aspects of the community survey.

Steve Robinson discussed the following items trom Washington County Planning and Zoning:

- Washington Co. road dept had dumped the surplus fill dirt at the cemetery turn to improve safety. The road supervisor will talk to Brad Wallis about the dumping near the road at the cemetery turn.

- the sexually oriented business ordinance is in progress. The County is required by law to provide a location for this.

- Steve will ask road supervisor Ken Canfield about safety striping on the outside of the access highway.

Julie reported on her attendance at the Annual Association of Special Service Districts Conference meeting and said that it was very informative. The Association has offered to assist Districts by providing $100 toward expenses when Trustees attend training sessions.

There being no further business, Lee moved and Vicki seconded a motion to adjourn. The motion was approved and the meeting adjourned.

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